

7	1Sharpe Capital LLC v. Bullard	Plaintiff 1Sharpe Capital LLC demurs to the Answers filed by Defendants Sean Leonidas Bullard and Dena Lanae Bullard. For the following reasons, the demurrer is OVERRULED as to the first and eighth affirmative defenses and SUSTAINED WITH LEAVE TO AMEND as to the remainder of affirmative defenses. An answer to a complaint shall contain: (1) the general or specific denial of the material allegations of the complaint controverted by the defendant and (2) a statement of any new matter constituting a defense. Code Civ. Proc. § 431.30(b) (Emphasis added). The same pleading of ultimate facts rather than legal conclusions is required in pleading an answer as in pleading a complaint. (<i>See FPI Development, Inc. v. Nakashimi</i> (1991) 231 Cal.App.3d 367, 384 [stating rule that answer must allege facts “averred as carefully and with as much detail as the facts which constitute the cause of action and which are alleged in the complaint.”].) The defenses shall be separately stated and are to refer to the causes of action which they are intended to answer. (Code Civ. Proc. § 431.30(g).) Only new matters must be specially pleaded, containing the ultimate facts sufficient to prove the defense. (<i>FPI Development, Inc. v. Nakashimi</i> (1991) 231 Cal.App.3d 367, 384.) A new matter is a matter alleged for the first time in the answer, creating a new issue in the case not presented by the complaint. (<i>Rancho Santa Margarita v. Vail</i> (1938) 11 Cal.2d 501, 543; <i>Coles v. Soulsby</i> (1862) 21 Cal. 47, 50 [“new matter” is “that matter which the defendant must affirmatively establish.”].) The determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action. (<i>South Shore Land Co. v. Petersen</i> (1964) 226 Cal.App.2d 725, 732.) The function of a demurrer is to test whether a pleading pleads sufficient allegations to give notice to other side as to the facts and theories of liability. (<i>Doe v. City of Los Angeles</i> (2007) 42 Cal. 4th 531, 550; <i>Abarrie v. State Farm Fire & Casualty Co.</i> (1988) 205 Cal.App.3d 530.) It is only necessary to plead ultimate facts and not evidentiary facts. (<i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6.) “All that is necessary against a general demurrer is that upon a consideration of all the facts stated, it appears the party whose pleading is attacked by demurrer is entitled to any relief at the hands of the court against his adversary, notwithstanding the facts may not be clearly stated, or may be intermingled with a statement of other facts irrelevant to the cause of action or defense shown ...” (<i>South Shore Land Co. v. Petersen</i>, 226 Cal.App.2d at 732-733.) “The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer.” (<i>Id.</i> at 733.) Each defense must be considered separately without regard to any other defense. If one of the defenses is free from the objections urged by the demurrer, then a demurrer to the entire answer must be overruled. (<i>Id.</i> at 734.) The demurrer to the First Affirmative Defense (Failure to State Facts Sufficient to Constitute Cause of Action) and Eighth Affirmative Defense
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		(Statute of Limitations) is overruled. An affirmative defense based on the failure to state facts or statute of limitations does not require that facts be pleaded in support thereof. (See Code Civ. Proc., §§ 430.801, 458; see also 5 Witkin, Cal. Proc. 5th (2008) Pleading, § 1082, p. 515 [an affirmative defense of failure to state contradicts the essential allegations of the complaint and does not raise new matters, but merely denies them in affirmative form].) Defendants have failed to allege any facts in support of the remaining affirmative defenses. Accordingly, the demurrer to these affirmative defenses is sustained. In light of this ruling, Plaintiff's request to strike the affirmative defenses is denied as moot. Should Defendants wish to file a First Amended Answer to address the issues discussed above, Defendants shall do so by May 29, 2026. Plaintiff shall give notice of this ruling. <u>Case Management Conference</u> The Case Management Conference is continued to July 16, 2026, at 9:00 a.m. in this department. Plaintiff to give notice.
8	SPCB Ventures, Inc. v. Senoa Holdings, Inc.	Defendant Senoa Holding LLC, erroneously sued as Senoa Holdings, Inc.'s demurrer to Plaintiff SPCB Ventures, Inc.'s complaint is OVERRULED. Defendants Anthony Perkins and Matsuki Perkins' demurrer to SPCB Ventures, Inc.'s complaint is OVERRULED as to the 1st, 2nd, 4th, 5th, and 6th causes of action for fraud and violation of Bus. & Prof. Code § 17200 <i>et seq.</i>, and SUSTAINED as to the 3rd and 7th causes of action for breach of contract and breach of covenant of good faith and fair dealing. Plaintiff is granted 20 days leave to amend. <u>General standard</u> A demurrer only tests the sufficiency of the pleadings. (<i>See Satyadi v. West Contra Costa Healthcare District</i> (2014) 232 Cal.App.4th 1022, 1028 [in analyzing a demurrer, the court looks only to the face of the pleadings and to matters judicially noticeable and not to the evidence or other extrinsic matters]). In reviewing the propriety of the sustaining of a demurrer, the "court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded. [Citations.] The court does not, however, assume the truth of contentions, deductions or conclusions of law. [Citation.] The judgment must be affirmed 'if any one of the several grounds of demurrer is well taken. [Citations.]' [Citation.] However, it is error for a trial court to sustain a demurrer when the plaintiff has stated a cause of action under any possible legal theory. [Citation.] And it is an abuse of discretion to sustain a demurrer